

The Andhra Pradesh Public Security Act, 1992

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State of Andhra Pradesh - Act

The Andhra Pradesh Public Security Act, 1992

ANDHRA PRADESH

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The Andhra Pradesh Public Security Act, 1992

Act 21 of 1992

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The Andhra Pradesh Public Security Act, 1992

[No. 21 of 1992]

An Act to provide for more effective prevention of certain unlawful activities of individuals and associations and matters connected thereto.

Whereas national interest and public order are being jeopardised by the unlawful activities of certain associations and groups of people and the administration of law and maintenance of order are being imperilled by their activities;

And whereas it is considered desirable to enact a special law to provide for prevention and control of such unlawful activities and for matters connected therewith;

Be it enacted by the Legislative Assembly of the State of Andhra Pradesh in the Forty-third Year of the Republic of India as follows:

1.

Short title, extent and commencement.?

(1)

This Act may be called the Andhra Pradesh Public Security Act, 1992.

(2)

It extends to the whole of the State of Andhra Pradesh.

(3)

It shall be deemed to have come into force on the 17th June, 1992.

2.

Definitions.?

In this Act , unless the context otherwise requires?

(a)

?Advisory Board? means the board constituted under Section 5;

(b)

?Association? means any combination, body or group of persons whether known by any distinctive name or not and whether registered under any relevant law or not and whether governed by any written constitution or not;

(c)

?Government? means the State Government;

(d)

?Notification? means a notification published in the Andhra Pradesh Gazette and the word ?notified? shall be construed accordingly;

(e)

?Unlawful activity? in relation to an individual or association means act ivity:?

(i)

which constitutes a danger or menace to public order, peace and tranquillity; or

(ii)

which has interfered or tends to interfere with the maintenance of public order; or

(iii)

which interfered or tends to interfere with the administration of law or its established institutions and personnel; or

(iv)

of indulging in or propagating acts of violence, terrorism, vandalism or other act s generating fear and apprehension in the public or indulging in or encouraging the use of fire arms, explosives and other devices or disrupting communications by rail or road; or

(v)

of encouraging or preaching disobedience to established law and its institutions; or

(vi)

of collecting money or goods forcibly to carry out any one or more of the unlawful activities mentioned above;

(f)

?Unlawful Association? means any association which indulges in or has for its object or abets or assists or gives aid, succour or encouragement, directly or indirectly, through any medium, device or otherwise, to any unlawful act ivity.

3.

Declaration of an association as unlawful.?

(1)

If the Government is of opinion that any association is, or has become, an unlawful association, it may, by notification, declare such association to be unlawful.

(2)

Every such notification shall specify the grounds on which it is issued:

Provided that nothing in this sub-section shall require the Government to disclose any fact which it considers to be against the public interest to disclose.

(3)

Where such unlawful association has a registered office, the notification shall be served by sending the same through

Registered post or handed over to any office-bearer in such registered office and in case any office bearer is not available or refuses to receive the notification, the same shall be affixed to some conspicuous part of the office. Where the association does not have a registered office the notification shall be published in any one local newspaper.

(4)

The notification shall be in force for a period of one year and may be extended for such further period or periods not exceeding one year at a time, as may be deemed necessary after reviewing the position.

(5)

A notification issued under sub-section (1) may be revoked by the Government where they consider that the need for its continuance has ceased.

4.

Representation by Association.?

Any association declared to be unlawful may, if it so chooses, send a representation to the Government within fifteen days from the date of publication of the notification or the date of receipt or affixture thereof in the manner specified in Section 3, whichever is later, and such representation shall be placed before the Advisory Board for its consideration. The association may, if it so requires, request for a personal hearing before the Advisory Board.

5.

Constitution and reference to the Advisory Board.?

(1)

(a)

The Government shall, whenever necessary, constitute one or more Advisory Boards for the purpose of this Act .

(b)

Each such Board shall consist of three persons who are or have been or qualified to be appointed as Judges of the High Court. The Government shall appoint the Members and designate one of them as the Chairman.

(2)

The Government shall within six weeks from the date, of publication of the notification under sub-section (1) of Section 3 make a reference to the Advisory Board and place before it a copy of the notification, supporting material and the representation, if any, received from the unlawful association, for its consideration.

6.

Procedure of the Advisory Boards.?

(1)

The Advisory Board shall after considering the material placed before it and if necessary after calling for such further information, as it may deem necessary from the Government or from any office bearer or member of the association concerned and after giving personal hearing, where sought for to the authorised office-bearer of the association, shall submit its report to the Government within three months from the date of receipt of reference from the Government.

(2)

Where the association seeks personal hearing an intimation specifying the date and time of hearing shall be sent to the address indicated in the representation of the association. The concerned association shall not be entitled to appear through a lawyer or any person other than an authorised office bearer.

(3)

The report of the Advisory Board shall specify in a separate part thereof its opinion or that of the majority of the members as to whether or not there was sufficient cause for the issue of the notification in respect of the association concerned.

7.

Action upon the report of the Advisory Board.?

(1)

In any case where the Advisory Board has reported that there is, in its opinion, sufficient cause for the issue of the notification declaring the concerned association as unlawful, the Government may confirm the notification and continue the same for such period as it thinks fit, subject to the provisions of sub-section (4) of Section 3.

(2)

In any case where the Advisory Board has reported that there is, in its opinion, no sufficient cause for the issue of a notification as aforesaid, the Government shall revoke the notification forthwith.

8.

Penalties.?

(1)

Whoever is a member of an unlawful association or takes part in meetings or activities of any such association or contributes or receives or solicits any contribution for the purpose of any such association shall be punished with imprisonment for a term which may extend to three years or with fine or with both.

(2)

Whoever manages or assists in the management of an unlawful association or promotes or assists in promoting a meeting of any such association or of any members thereof, or in any way assists, abets or aids the unlawful activities of any such association through whatever manner or whatever medium or device shall be punished with imprisonment for a term which may extend to three years or with fine or with both.

9.

Power to notify and take possession of places used for the purpose of unlawful activities.?

(1)

The Government or in any area for which a Commissioner of Police is appointed, the Commissioner of Police and elsewhere the District Magistrate, may notify any place which in its opinion or in his opinion is used for the activities of an unlawful association. Such officer shall be known as the competent authority.

Explanation: For the purpose of this section, place includes a house or building or part thereof or a tent or vessel.

(2)

When any place is notified under sub-section (1) the Competent Authority or any officer authorised in this behalf in writing by him may take possession of the notified place and evict therefrom any person found therein, and shall forthwith make a report of the taking possession to the Government:

Provided that where such place contains any apartment occupied by women or children reasonable time and facilities shall be provided for their withdrawal with least possible inconvenience.

(3)

A notified place whereof possession is taken under subsection (2) shall remain in the possession of the Government as long as the notification under Section 3 in respect thereof remains in force or for such earlier period as the Government decides.

10.

Movable property found in the notified place.?

(1)

The Competent Authority referred to in Section 9 or the officer authorised by him, while taking possession of notified place shall also take possession of movable property including money, securities or other assets found therein and shall make a list thereof in the presence of two respectable witnesses.

(2)

If in the opinion of the Competent Authority or the authorised officer any article specified in the list is or may be used for or in aid of the purposes of the unlawful association he may proceed, subject to the provisions hereinafter contained in this section, to order such article to be forfeited to Government.

(3)

All other articles specified in the list shall be delivered to the person whom the competent authority considers to be entitled to possession thereof and if no such person is found entitled thereto, it shall be disposed of in such manner as he may direct.

(4)

The Competent Authority shall publish a notice in two local newspapers one of which is in the local language, specifying the articles which are proposed to be forfeited and calling upon any person claiming that any article is not liable for forfeiture to submit in writing within fifteen days any representation he desires to make against forfeiture of the article.

(5)

The Competent Authority shall consider the representation and pass such orders as he deems fit. If the decision is to forfeit the article, he shall give reasons therefor.

(6)

Against any order of forfeiture passed under sub-section (5) the person who made the representation may file an appeal

to the Government within thirty days from the date of receipt of the order. The Government may pass such orders thereon as it deems fit after giving an opportunity to the appellant. Such order of the Government shall be final.

(7)

If the articles seized in livestock or is of a perishable nature, the Competent Authority may, if he thinks it expedient, order the immediate sale thereof and the proceeds of the sale shall be disposed of in the manner herein provided for the disposal of the other articles.

11.

Power to forfeit funds of an unlawful association.?

(1)

Where the Government is satisfied, after such inquiry as it may think fit, that any monies, securities or other assets are being used or are intended to be used for the purpose of an unlawful association, the Government may, by order in writing, declare such monies, securities or other assets to whomsoever they belong to be forfeited to Government.

(2)

A copy of an order under sub-section (1) may be served on the person having custody of the monies, securities or other assets and the service of such copy such person shall pay or deliver the monies, securities or other assets to the order of the Government:

Provided that in the case of monies or securities, a copy of the order may be endorsed for execution to such officer as the Government may select, and such officer shall have power to enter upon and search for such monies and securities in any premises where they may reasonably be suspected to be, and to seize the same.

(3)

Before an order of forfeiture is made under sub-section (1) the Government shall give a written notice to the person, if any in whose custody the monies, securities or other assets are found, of its intention to forfeit and such person may make a representation to the Government against the proposed order of forfeiture within fifteen days of the receipt of the notice. The Government shall after considering the representation, if any, received from the affected person pass such orders as they deem fit.

(4)

Where the Government has reason to believe that any person has custody of any monies, securities or other assets which are being used or are intended to be used for the purpose of an unlawful association, the Government may, by order in writing, prohibit such person from paying, delivering, transferring or otherwise dealing in any manner whatsoever with the same, save in accordance with the written orders of the Government. A copy of such order shall be served upon the person to whom it is directed.

(5)

The Government may endorse a copy of an order under subsection (4) for investigation to any officer it may select, and such copy shall be deemed to be warrant whereunder such officer may enter upon any premises of the person to whom the order is directed, examine the books of such person or any officer, agent or servant of such person, search for monies and securities and make inquiries from such person touching the origin of and dealings in any monies, securities or other assets which the investigating officer may suspect are being used or are intended to be used for the purpose of an unlawful association.

(6)

A copy of an order under this section may be served in the manner provided in the Code of Criminal Procedure, 1973 (Central Act 2 of 1974) for the service of summons, or where the person to be served is a Corporation, Company, Bank or Association of persons, it may be served on any secretary, director or other officer or person concerned with the management thereof, or by leaving it or sending it by post addressed to the Corporation, Company, Bank or Association at its registered office, or where there is no registered office, at the place where it carries on business. Where the Government are satisfied that in the circumstances it is not reasonably practicable to follow such procedure, they may cause the order to be published in any local newspaper.

(7)

Where an order of forfeiture is made under sub-section (1) in respect of monies, securities or other assets in respect of which a prohibitory order has been made under sub-section (4), such order of forfeiture shall have effect from the date of prohibitory order, and the person to whom the prohibitory order was directed shall pay or deliver the whole of the monies, securities, or other assets forfeited, to the order of the Government.

(8)

Where any person liable under this section to pay or deliver any monies, securities or other assets to the order of the Government, refuses or fails to comply with any direction of the Government in this behalf, the Government may recover from such person, as arrears of land revenue or as a fine, the amount of such monies or other financial assets or the market value of such securities.

(9)

In this section, 'security' includes a document whereby any person acknowledges that he is under a legal liability to pay money, or whereunder any person obtains a legal right to the payment of money and the market value of any security means the value as fixed by any officer or person deputed by the Government in this behalf.

(10)

Except so far as is necessary for the purposes of any proceeding under this section, no information obtained in the course of any investigation made under sub-section (5) shall be divulged by any officer of Government without the consent of the Government.

(11)

The Government may, by order, delegate their powers under this section to any officer not below the rank of a District Collector and likewise withdraw the same.

(12)

The Government may, in their discretion at any time, either suo motu or on an application made by the aggrieved party, call for and examine the records of any order passed by the District Collector under sub-section (11) for the purpose of satisfying themselves as to the legality, regularity or propriety thereof and pass such orders in reference thereto as they may deem fit:

Provided that no order under this sub-section shall be passed by the Government unless the party likely to be affected thereby has had an opportunity of making a representation.

12.

Revision.?

(1)

An application for revision shall lie to the High Court, against any order passed by the Government under subsection (1) of Section 7 confirming the notification issued under subsection (1) of Section 3 or against any order of forfeiture under subsection (1) of Section 11 questioning the legality, regularity or propriety thereof.

(2)

A revision petition under this section shall be filed within a period of thirty days from the date of receipt of the order of the Government referred to in sub-section (1).

(3)

Every revision petition under this section shall be heard by a Bench of three Judges.

13.

Trespass upon notified places.?

Any person who enters or remains upon a notified place without the permission of the Competent Authority or an officer authorised in this behalf by Competent Authority shall be deemed to commit an offence of criminal trespass.

14.

Bar of jurisdiction.?

Save as otherwise expressly provided in this Act and without prejudice to the jurisdiction and powers of the Supreme Court and High Court under the Constitution of India, no proceedings taken under this Act by the Government or the Competent Authority or any officer authorised in this behalf by the Government shall be called in question in any court in any suit of application or by way of appeal or revision, and no injunction shall be granted by any court or other authority in respect of any act or action taken or to be taken in pursuance of any power conferred by or under this Act.

15.

Protection of action taken in good faith.?

No civil or criminal proceeding shall be instituted against any person for anything done in good faith or intended to be done under this Act or against the Government or any person acting on behalf of or by the authority of the Government for any loss or damage caused to or in respect of any property, whereof possession has been taken by the Government under this Act.

16.

Constitution of Association.?

An association shall not be deemed to have ceased to exist by reasons only of any formal act of dissolution or change of title, but shall be deemed to continue so long as any actual combination for the purposes of such association continues between any members thereof.

17.

Power to make rules.?

(1)

The Government may, by notification make rules for carrying out all or any of the purposes of this Act .

(2)

Every rule made under this Act shall immediately after it is made, be laid before the Legislative Assembly of the State if it is in session and if it is not in session in the session immediately following for a total period of fourteen days which may be comprised in one session, or in two successive sessions and if, before the expiration of the session in which it is so laid or the session immediately following the Legislative Assembly agrees in making any modification in the rule or in the annulment of the rule, the rule shall, from the date on which the modification or annulment is notified, have effect only in such modified form, or shall stand annulled, as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

18.

Repeal.?

(1)

The following acts are hereby repealed:?

(a)

The Indian Criminal Law Amendment (Andhra Pradesh) (Andhra Area) Act, 1950 (Act XI of 1950); and

(b)

The Andhra Pradesh (Telangana Area) Public Security Act, 1348 F. (Act XII of 1348 F).

(2)

Upon such repeal, the provisions of?

Section 8 of the Andhra Pradesh (Andhra Area) General Clauses Act, 1891 (Act 1 of 1891) or as the case may be Sub-section (5) of Section 3 of the Andhra Pradesh (Telangana Area) General Clauses Act, 1308 F. (Act III of 1308 F) shall apply.

(3)

The Andhra Pradesh Public Security Ordinance, 1992 (Ordinance 6 of 1992) is hereby repealed.

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